

ROBBINS VS. ADVANCED CRISIS SOLUTIONS, INC.

Case Number: 24CV-0204925

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued January 29, 2025 to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement as required by CRC 3.1380(c) and Local Rule of Court 3.04. Plaintiff filed a stipulation and order requesting additional time to seek resolution of the case, which was granted by the Court on February 27, 2025. Further, Defendant filed a General Denial and response to the Order to Show Cause on February 27, 2025. In light of the filings submitted by both Plaintiff and Defendant, the Order to Show Cause is **DISCHARGED** as to all parties and counsel. The Court notes the future hearing of June 2, 2025 for Trial Setting Conference. **No appearance is necessary on today's calendar.**

WELLS FARGO BANK, N.A. VS. TOWE

Case Number: 24CVG-00197

Tentative Ruling on Motion for Summary Judgment: Plaintiff Wells Fargo Bank, N.A. moves for summary judgment on the Complaint filed against Defendant Kevin Towe on February 15, 2024.

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

Plaintiff has presented evidence that Defendant opened a Wells Fargo Credit card, made charges to the card, and stopped paying after June 5, 2023. The Card Agreement and monthly billing statements from January of 2008 through December of 2023 were provided. Per the Court's August 5, 2024 Order, Defendant has been deemed to have admitted the following facts: That Plaintiff issued Defendant a Wells Fargo Credit Card, Defendant was to pay principal the amount charged plus finance charges, only Defendant or those authorized by Defendant used the card, Defendant received monthly statements, no transactions were disputed for any of the monthly billing statements, Defendant owes \$27,647.96, and the last payment was on June 5, 2023.

The Complaint alleges six causes of action:

1. Breach of Written Contract
2. Breach of Implied Contract
3. Common Counts for Money Lent
4. Common Counts for Money Paid
5. Common Counts for an Open Book Account
6. Common Counts for Account Stated.

Breach of Contract. A cause of action for breach of contract requires pleading of a contract, the plaintiff's performance or excuse for failure to perform, the defendant's breach, and damage to plaintiff resulting therefrom. *Miles vs. Deutsche Bank National Trust Company* (2015) 236 Cal. App. 4th 394. A cause of action for breach of implied contract has the same elements as does a cause of action for breach of contract except that the promise is not expressed in words but is implied from the promisor's conduct. *San Mateo Union High School District v. County of San Mateo* (2013) 213 Cal. App. 4th 218.

Money Lent and Paid. The elements of a Common Count for money lent are that the defendant is indebted in a certain sum for money loaned by plaintiff and the defendant has not repaid the money lent. *Pleasant vs. Samuels* (1896) 114 Cal. 34. The elements are identical for the Common Count of Money Paid. *Id.*

Open Book Account. A book account is a form of common count defined as a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith. *Professional Collection Consultants v. Lujan* (2018) 23 Cal. App. 5th 685, 690-91. A book account is ‘open’ where a balance remains due. *Id.* at 691. The elements are: 1) existence of the principal record of one or more transactions between creditor and debtor; 2) entries in the record that were made in the creditor’s regular course of business; and 3) the record was kept in a reasonably permanent form and manner. CCP § 337a. In deciding whether a book account exists, a court must examine the agreement between the parties and their conduct in the course of their dealings. *Maggio, Inc. v. Neal* (1987) 196 Cal. App. 3d 745, 752.

Account Stated. An account stated is ‘an agreement, based on prior transactions between the parties, that the items of an account are true and that the balance struck is due and owing. *Professional Collection Consultants v. Lauron* (2017) 8 Cal. App. 5th 958, 968; *Maggio, Inc. v. Neal, supra*, 196 Cal. App. 3d 745, 753. When an account stated is assented to, either expressly or impliedly, it becomes a new contract. Accordingly, an action on an account stated is not based on the parties’ original transactions, but on the new contract under which the parties have agreed to the balance due. *Professional Collection Consultants v. Lujan, supra*, 23 Cal. App. 5th 685. The elements are: 1) previous transactions between the parties establishing the relationship of debtor and creditor; 2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; 3) a promise by the debtor, express or implied, to pay the amount due. *Zinn v. Fred R. Bright Co.* (1969) 271 Cal. App. 2d 597, 600. When a statement is rendered to a debtor and no reply is made in a reasonable time, the law implies an agreement that the account is correct as rendered. *Maggio, Inc. v. Neal, supra*, 196 Cal. App. 3d 745, 752.

The facts in this matter are straightforward and uncontested. Plaintiff has met its burden of proving each element of each cause of action and showing that there is no defense. The burden shifts to the Defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. Defendant has not opposed the motion. Defendant has provided no evidence that a triable issue of material fact remains.

The motion is **GRANTED**. Judgment is in favor of the Plaintiff in the amount of \$27,647.96 plus costs in the amount of \$860.00 for a total judgment of \$28,517.96. A proposed order and proposed judgment were lodged with the Court and will be modified to reflect the Court’s final ruling. The trial date of April 21, 2025 is vacated and the file will be closed when judgment is entered.

WILSON VS. DESHIELDS

Case Number: 24CV-0204481

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued to Plaintiff Wendy Dedicatoria Wilson for her failure to serve pleadings pursuant to California Rule of Court 3.110(b) and for failure to timely prosecute. The Complaint in this matter was filed on March 11, 2024. Proof of Service of Summons has not been filed. Plaintiff is in violation of CRC 3.110 and the Court has spent considerable time and resources on this matter to gain compliance with a basic Rule of Court. No response to the Order to Show Cause having been filed, and prior sanctions not being effective, the matter is **DISMISSED**.

9:00 a.m. – Review Hearings

IN RE BARTLETT

Case Number: 25PB-0032800

This matter is on calendar for review regarding status of funding. On February 25, 2025, this Court issued an Order after the February 18, 2025 hearing. The Court directed counsel to file an additional declaration with